

Indian Bills of Lading Act, 1856

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Union of India - Act

Indian Bills of Lading Act, 1856

UNION OF INDIA

India

Indian Bills of Lading Act, 1856

Act 9 of 1856

Published on 11 April 1956

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Indian Bills of Lading Act, 1856

Act

No. 9 of 1856

1453.

[11th April, 1956]

An Act to amend the law relating to Bills of Lading

Preamble.- Whereas by the custom of merchants a bill of lading of goods being transferable by endorsement, the property in the goods may thereby pass to the endorsee, but nevertheless all rights in respect of the contract contained in the bill of lading continue in the original shipper or owner, and it is expedient that such rights should pass with the property; And whereas it frequently happens that the goods in respect of which bills of lading purport to be signed have not been laden on board, and it is proper that such bills of lading in the hands of a bona fide holder for value should not

be questioned by the master or other person signing the same, on the ground of the goods not having been laden as aforesaid, it is enacted as follows :

This Act is based on the Bills of Lading Act, 1855 (18 and 19 Vict. c. 111), Act IX of 1856 has been declared to be in force in the whole of British India, except the Scheduled Districts, by the Laws Local Extent Act (15 of 1874), section 3. It has been declared by notification under S.3(a) of the Scheduled Districts Act (14 of 1874), to be in force in the following Scheduled Districts :

West Jalpaiguri

See Gazette of India

1881. Pt. I., p. 74.

The Districts of Hazaribagh, Lohardaga (now the Ranchi District); (See Calcutta Gazette 1899, Pt. 1, p. 44) and Manbhum, and Pargana Dalbhum and the Kolhan in the District of Singbhum.

See Gazette of India

1881, Pt. I., p.504.

Assam (except the North Lushai Hills)

See Gazette of India

1897, Pt. I., p.29.

This Act has been extended to the new Provinces and Merged States by the Merged States (Laws) Act (1949) (50 of 1949), S.3 (1-1-1950) and to the States of Manipur, Tripura and Vindhya Pradesh by the Union Territories (Laws) Act, 1950 (

30 of 1950

), S.3 (16-4-1950). Manipur and Tripura are States now (see Act

81 of 1971

) and Vindhya Pradesh forms part of the State of Madhya Pradesh (See Act 37 of 1936).

The Act has now been extended to the Union territory of Pondicherry, by the Pondicherry (Extension of Laws) Act. 1968 (26 of 1968). S.3(1) and Sch., Pt.I [w.e.f. 18-12-1969.]

1.

Rights under bills of lading to vest in consignee or endorsee.-

Every consignee of goods named in a bill of lading and every endorsee of a bill of lading to whom the property in the goods therein mentioned shall pass, upon or by reason of such consignment or endorsement, shall have transferred to and vested in him all rights of suit, and be subject to the same liabilities in respect of such goods as if the contract contained in the bill of lading had been made with himself.

2.

Not to affect right of stoppage in transit or claims for freight.-

Nothing herein contained shall prejudice or affect any right of stoppage in transit, or any right to claim freight against the original shipper or owner, or any liability of the consignee or endorsee by reason or in consequence of his being such consignee or endorsee, or of his receipt of the goods by reason or in consequence of such consignment or endorsement.

3.

Bill of lading in hands of consignee, etc., conclusive evidence of the shipment as against master etc.-

Every bill of lading in the hands of a consignee or endorsee for valuable consideration representing goods to have been shipped on board a vessel, shall be conclusive evidence of such shipment as against the master or other person signing the same, notwithstanding that such goods or some part thereof may not have been so shipped. unless such holder of the bill of lading shall have had actual notice at the time of receiving the same that the goods had not in fact been laden on board :

Provided that the master or other person so signing may exonerate himself, in respect of such misrepresentation, by showing that it was caused without any default on his part, and wholly by the fraud of the shipper or of the holder, or some person under whom the holder claims.

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